

on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. With respect to actions involving public entities, this section applies to allowances against, but not in favor of, public entities, and no claim shall be required to be filed therefor, unless one or more successful parties and one or more opposing parties are public entities, in which case no claim shall be required to be filed therefor under Part 3 (commencing with Section 900) of Division 3.6 of Title 1 of the Government Code.

CCP § 1021.5

Analysis: Respondents request the Court stay ruling on Intervenor's Motion for Attorney Fees. Petitioner also requests a continuance of the hearing. Both requests are made in part on the grounds that on June 12, 2026, California Attorney General Rob Bonta and Secretary of State Shirley Weber filed a Petition for Writ of Mandate, challenging Measure B (the ballot initiative at issue in this matter). *The People of the State of California v. County of Shasta*, et al., Case No. C106517, filed in the California Court of appeal for the Third Appellate District, names Intervenor as Real Parties in Interest. It argued that Measure B is unlawful, and requested the court strike the measure on an expedited basis in light of the upcoming November election.

On June 25, 2026, after the filing of the parties' briefing in this case, the court of appeal denied the state officials' petition for writ of mandate without prejudice on procedural grounds. The appellate court declined to exercise its original jurisdiction, and instead indicated that appellate review would be appropriate only after the matter was litigated in the superior court.

Given the state's expressed concerns with the legality of Measure B, it is apparent to the Court that litigation over the matter has likely not yet come to an end. Further, given the impact that implementation of Measure B would have over Shasta County elections less than 5 months away, any review sought in the superior court will likely be done on an accelerated basis. Until a determination as to the validity of Measure B is made, this Court cannot determine whether Intervenor has met their burden under CCP § 1021.5, thereby entitling them to attorney fees.

Therefore, pursuant to its authority under CCP § 128, and finding good cause, the Court will continue the hearing on this motion. Considering the likely accelerated nature of that matter, the Court finds that Intervenor will not be prejudiced by a continuance. Conversely, the potential for prejudice to Petitioner and Respondents absent a continuance is substantial. The ultimate determination of the legality of Measure B is clearly relevant to the Court's determination of whether a significant benefit has been conferred on the general public, and the necessity of private enforcement by Intervenor. The interests of justice are best served by a continuance. This motion is continued to **Monday, August 31, 2026 at 8:30 a.m. in Department 63**. The Court considers the matter fully briefed.

IN RE: MONDRAGON

CASE NUMBER: 26CV-0210282

Tentative Ruling on Petition for Change of Name: Petitioner Marissa Anne Mondragón-Mullens seeks to change her name to Marissa Aurora-Olivia Mondragón. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.